



Forthcoming judgments and decisions

The European Court of Human Rights will be notifying in writing seven judgments on Tuesday 27 March 2018 and 65 judgments and / or decisions on Thursday 29 March 2018.

Press releases and texts of the judgments and decisions will be available at 10 a.m. (local time) on the Court's Internet site (www.echr.coe.int)

Tuesday 27 March 2018

[Aleksandr Aleksandrov v. Russia \(application no. 14431/06\)](#)

The applicant, Aleksandr Aleksandrov, is a Russian national who was born in 1983 and lives in Cheboksary (Russia).

The case concerns his prison sentence for kicking a police officer.

In 2005 Mr Aleksandrov was found guilty of a drunken assault on a police officer and sentenced to one year's imprisonment. The trial court refused to impose a non-custodial sentence because, among other things, he had no permanent residence within the Moscow Region where the offence had been committed and the sentence pronounced. Mr Aleksandrov appealed, unsuccessfully.

Relying on Article 14 (prohibition of discrimination) of the European Convention on Human Rights, Mr Aleksandrov alleges that the only reason he was given a custodial sentence was because he did not have a permanent place of residence in the region in which he had been tried and that this was discriminatory. The case will also be examined under Article 5 (right to liberty and security).

[Berkovich and Others v. Russia \(nos. 5871/07, 61948/08, 25025/10, 19971/12, 46965/12, 75561/12, 73574/13, 504/14, 31941/14, and 45416/14\)](#)

The case concerns Russian nationals who were prevented from going abroad on the grounds that they had previously had access to State secrets during their employment.

The applicants were born between 1950 and 1987 and live in Russia.

Following the termination of their employment, the authorities refused to issue them with or return their travel passports. They were told that their right to leave Russia would be restricted for the following five years. They all challenged these refusals in court, without success.

Relying on Article 2 of Protocol No. 4 (freedom of movement) to the European Convention, the applicants complain about the Russian authorities' refusal to issue them with a passport allowing them to leave Russia. They allege that the restriction on their right to travel abroad was unnecessary and disproportionate, especially in view of the fact that they had been allowed to travel during their employment, some on official business, others on holiday and another to visit his parents.

[İbrahim Keskin v. Turkey \(no. 10491/12\)](#)

The applicant, Mr İbrahim Keskin, is a Turkish national who was born in 1972 and lives in Sivas (Turkey).

The case concerns allegations of medical negligence committed by a hospital during the birth of a child.

In January 2001 Mr Keskin's wife gave birth to a daughter. Following a subsequent examination it transpired that the child was suffering from an obstetrical paralysis of the right brachial plexus. Four surgical operations were carried out and, according to a medical report of 2014, the child was declared 60% disabled. Mr Keskin brought criminal and civil proceedings but was unsuccessful.

Relying on Articles 8 (right to respect for private and family life) and 6 § 1 (right to a fair hearing), the applicant argues that his daughter has been prevented from leading a normal life on account of medical negligence by the staff of the social security hospital in Sivas at the time of her birth and that his case has not been examined fairly by the domestic courts.

[Özgün Öztunç v. Turkey \(no. 5839/09\)](#)

The applicant, Mr Özgün Öztunç, is a Turkish national who was born in 1974 and lives in Istanbul.

The case concerns a search and seizure in a lawyer's office.

On 13 January 2004, on suspicion of being involved in a white-collar criminal organisation, a number of individuals had their homes and offices searched. Mr Öztunç was thus arrested at the office where he practised as a lawyer and the premises were searched by the police. On 10 May 2005 the Assize Court partially acquitted him. In January 2005 Mr Öztunç applied for compensation from the Ministry of Justice but his request was denied. Mr Öztunç then brought proceedings before the Administrative Court, which found that it did not have jurisdiction. The Supreme Administrative Court dismissed his appeal.

Relying on Articles 8 (right to respect for one's private and family life, home and correspondence) and 13 (right to an effective remedy), the applicant complains that the search and seizure carried out in the office where he practised as a lawyer was illegal and unlawful and that he had no effective legal remedy in that connection. He also takes the view that the denial of his request for a public hearing before the Supreme Administrative Court breached Article 6 § 1 (right to a fair hearing).

[Şehmus Ekinci v. Turkey \(no. 15930/11\)](#)

The applicant, Mr Şehmus Ekinci, is a Turkish national who was born in 1983 and lives in Batman (Turkey).

The case concerns compulsory military service.

According to a number of medical reports, Mr Ekinci was suffering from psychotic disorders. In February 2008 he underwent a medical examination prior to his conscription into compulsory military service and informed the authorities of his psychiatric problems. The psychiatrist from the military hospital decided that he was fit for service, with the exclusion of serving as a commando. Mr Ekinci challenged the decision but was unsuccessful. He performed his service sporadically before ultimately being exempted. The High Court dismissed his action for damages.

Relying on Article 6 § 1 (right to a fair hearing) and Article 8 (right to respect for private and family life), the applicant complains that he was obliged to perform compulsory military service, despite the fact that, in his opinion, he was unfit for such service for psychiatric reasons. He also complains of a lack of independence and impartiality on the part of the military administrative High Court which examined his compensation claim.

[Voykin and Others v. Ukraine \(no. 47889/08\)](#)

The applicants, Valeriy Voykin, Marina Voykina, Elleonora Shupnyak, and Valentina Voykina, are Ukrainian nationals who were born in 1978, 1984, 1951, and 1948 respectively and live or lived in Horlivka (Ukraine). Valentina Voykina died in December 2010. Her complaint is being pursued by the first applicant, her son.

The case concerns allegations of assault by an off-duty police officer and the lack of a proper investigation, unjustified detention and unlawful police searches.

The second applicant, Marina Voykina, alleges that she was assaulted in June 2008 by an off-duty police officer who was a colleague of her husband, the first applicant. The police and local and regional prosecutors refused to begin criminal proceedings in relation to the assault, which was denied all along by the alleged perpetrator.

The first applicant's case arose after the prosecutor's office summoned him in September 2008. He failed to attend and was eventually arrested in June 2009 on suspicion of abuse of power, forgery and bribe-taking in his capacity as a law-enforcement official. He was held for a time in pre-trial detention and was ultimately sentenced to six years in jail under an appeal court ruling of December 2013. In connection with the investigation into Mr Voykin, the flats of the third and fourth applicants were also searched, about which they unsuccessfully complained to the authorities.

The applicants rely in particular on Article 3 (prohibition of torture and of inhuman or degrading treatment), Article 5 § 1 (right to liberty and security), Article 8 (right to respect for private and family life, the home and the correspondence), and Article 13 (right to an effective remedy) in conjunction with Article 8.

[The Court will give its rulings in writing on the following cases, some of which concern issues which have already been submitted to the Court, including excessive length of proceedings.](#)

These rulings can be consulted from the day of their delivery on the Court's online database [HUDOC](#).

They will not appear in the press release issued on that day.

Toma v. Romania (no. 23408/11)

Thursday 29 March 2018

[Just satisfaction](#)

[Karen Poghosyan v. Armenia](#) (no. 62356/09)

The case concerns the issue of just satisfaction with regard to the quashing of a final domestic judgment recognising Mr Poghosyan's ownership rights of a building and plot of land.

In its [principal judgment](#) of 31 March 2016 the Court held that there had been a violation of Article 6 § 1 (right to a fair hearing) of the European Convention on Human Rights, and a violation of Article 1 of Protocol No. 1 (protection of property) to the Convention.

The Court further held that the question of just satisfaction was not ready for decision and reserved it for examination at a later date.

The Court will deal with this question in its judgment of 29 March 2018.

[Krombach v. France](#) (no. 67521/14)

The applicant, Dieter Krombach, is a German national who was born in 1935. According to the information available to the Court, he is in prison in Paris.

The case concerns Mr Krombach's criminal conviction in France for events in respect of which he considers that he was previously acquitted in Germany. The facts concern the circumstances surrounding the death of Kalinka Bamberski in 1982 at Mr Krombach's home in Germany.

Ms Bamberski, aged 15, was Mr Krombach's stepdaughter and the daughter of André Bamberski. The latter had lodged a complaint in Germany and France against Mr Krombach, whom he suspected of raping and then murdering his daughter. Between 1982 and 1986 the German authorities carried

out several investigations and issued four decisions discontinuing proceedings, on the basis that there was insufficient evidence to justify a prosecution. As Ms Bamberski was a French national, criminal proceedings had also been opened in France against Mr Krombach.

In 1995 the Paris Assize Court sentenced him in his absence to 15 years' imprisonment for assault resulting in unintentional death. In its judgment *Krombach v. France* (no. 29731/96) of 13 February 2001, the European Court of Human Rights held that this conviction had been in violation of Article 6 (right to a fair trial) of the Convention and Article 2 of Protocol No. 7 (right of appeal in criminal matters). By a judgment of 10 December 2008, the Court of Cassation quashed and set aside, in the interests of the law, the assize court judgment of 1995.

Mr Krombach remained at liberty in Germany until André Bamberski organised his abduction and removal to France: on 18 October 2009 he was deposited in Mulhouse (France), having been tied up, gagged and injured; he was arrested and placed in pre-trial detention. In October 2011 the Paris Assize Court sentenced him to 15 years' imprisonment for assault resulting in Ms Bamberski's unintentional death. That judgment was upheld on appeal, and an appeal on points of law by Mr Krombach was dismissed.

Mr Krombach alleges that there has been a violation of Article 4 of Protocol No. 7 (right not to be tried or punished twice).

The Court will give its rulings in writing on the following cases, some of which concern issues which have already been submitted to the Court, including excessive length of proceedings.

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Frroku and Marinaj v. Belgium (no. 56066/10)

Rekić v. Bosnia and Herzegovina (no. 39894/11)

Fartunova v. Bulgaria (no. 34525/08)

Prokopiev v. Bulgaria (no. 31040/10)

Gérard v. France (no. 17694/12)

G.T. v. Hungary (no. 20249/14)

Gellértheyi and Others v. Hungary (nos. 78135/13 and 429/14)

K.S. v. Hungary (no. 11687/14)

L.H. v. Hungary (no. 8883/14)

Latkóczy and Others v. Hungary (nos. 44660/13, 54547/13, 56484/13, and 58865/13)

P.R. v. Hungary (no. 11688/14)

Vajó v. Hungary (no. 65849/13)

Bacriță and Others v. Romania (no. 4849/16 and 24 other applications)

Bicajanu-Horciu v. Romania (no. 39460/15)

Boldijar and Others v. Romania (nos. 46831/14, 541/15, 15555/15, 27174/15, 23681/15, 34879/15, 41903/15, 43383/15, 46074/15, 46887/15, 33600/16, 50118/15, 51850/15, 52333/15, 61992/15, and 2763/16)

Corduneanu and Others v. Romania (nos. 7065/14, 8601/14, 21629/14, 38935/14, 39376/14, 39411/14, 41085/14, 43170/14, 57505/14, 58320/14, 60235/14, 64971/14, 65092/14, 66307/14, and 72699/14)

Corne v. Romania (no. 25675/04)

Ghiga and Gabrea v. Romania (no. 24047/13)

Hanțig and Others v. Romania (no. 61339/14 and 24 other applications)

Ilie v. Romania (no. 78178/14)

Ilie and Others v. Romania (nos. 47861/14, 47983/14, 50488/14, 59260/14, 61116/14, 33943/15, 44672/15, 45930/15, 48281/15, 49256/15, 50018/15, 52107/15, 54412/15, 57572/15, and 58212/15)

Mindl v. Romania (no. 38473/03)
Munteanu v. Romania (no. 62544/14)
Nicolae Popa v. Romania (no. 55242/12)
Onofrei and Others v. Romania (no. 1870/15 and 22 other applications)
S.C. Italvetri Company S.R.L. v. Romania (no. 43611/10)
S.C. Lemtrans International Prod Com S.A. București v. Romania (no. 1469/08)
S.C. Polyinvest S.R.L. and Others v. Romania (nos. 20752/07, 24612/07, and 49814/13)
Sandu v. Romania (no. 2465/09)
Toader and Stan v. Romania (nos. 39606/15 and 26007/16)
Zlatin and Others v. Romania (nos. 24693/07, 34883/10, 18456/11, 5753/12, 20569/12, and 47967/13)
A.K. and Others v. Russia (nos. 7130/08, 32834/16, 50530/16, 50531/16, 52484/16, and 57926/16)
Arsentyev and Others v. Russia (nos. 17970/10, 63005/16, 67558/16, 69128/16, 71484/16, and 75363/16)
Belkov and Others v. Russia (nos. 8344/12, 66632/13, 42103/16, 45922/16, 47150/16, 54783/16, and 62556/16)
Burtovoy and Others v. Russia (nos. 48342/13, 43155/14, 43279/14, 51086/14, 58050/14, 60428/14, 61617/14, and 71766/14)
Chernov v. Russia (no. 29584/13)
Fatkin and Others v. Russia (nos. 21778/08, 22616/13, 54510/15, 3708/16, 5002/16, 38173/16, and 4069/17)
Fomin v. Russia (no. 15524/08)
Kirsanov and Others v. Russia (no. 4915/06)
Kononenko and Kurinnaya v. Russia (nos. 23119/07 and 43385/07)
Kryukov v. Russia (no. 13490/11)
Kudelya v. Russia (no. 29923/08)
Lastochkin and Others v. Russia (nos. 7121/15, 56307/16, 10/17, 16113/17, 19991/17, 20530/17, and 24209/17)
Livakhov v. Russia (no. 5408/07)
Lozovskiy v. Russia (no. 21063/08)
Naumov and Others v. Russia (nos. 72708/14, 73516/14, 75672/14, 76109/14, 3605/15, 7502/15, 15681/15, 17728/15, and 18811/15)
Nemtsev and Others v. Russia (nos. 22722/14, 49400/16, 49635/16, 72677/16, 73716/16, 73788/16, and 4495/17)
Nicheporuk and Others v. Russia (nos. 19538/10, 35782/12, and 37026/13)
Orlov and Others v. Russia (nos. 39680/08, 44358/08, and 16337/10)
Perov and Others v. Russia (nos. 41792/05, 38502/07, 40419/07, 40513/08, 48038/08, 13277/14, and 68090/14)
Pimakin v. Russia (no. 55984/16)
Prokhorenko and Others v. Russia (nos. 12204/15, 63371/16, and 77886/16)
Shimokhin and Others v. Russia (nos. 9428/17, 12107/17, 12152/17, 12470/17, 14245/17, 28740/17, 28845/17, and 31597/17)
Tupitsina and Baboshina v. Russia (nos. 9430/06 and 29800/16)
Valuykin and Others v. Russia (nos. 32920/16, 52959/16, 55754/16, 59891/16, 73358/16, 11259/17, 19165/17, and 38294/17)
Kudláčová v. Slovakia (no. 598/17)
Smolko v. Slovakia (no. 62906/16)
Pečenko v. Slovenia (no. 39485/14)
Baz and Others v. Turkey (no. 24029/15 and 69 other applications)

Demirel and Others v. Turkey (nos. 38027/15, 38031/15, 38043/15, 38324/15, 38491/15, 38606/15, 38608/15, 40472/15, 51812/15, 60208/15, 778/16, 914/16, 2983/16, 2989/16, 2999/16, and 4481/16)

Bazhan and Others v. Ukraine (nos. 19297/08 and 11436/09)

Konoroy and Gryta v. Ukraine (nos. 40213/13 and 41168/17)

Rashitov and Others v. Ukraine (nos. 60085/12, 20914/13, 24048/13, 1964/16, and 5014/16)

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The European Court of Human Rights was set up in Strasbourg by the Council of Europe Member States in 1959 to deal with alleged violations of the 1950 European Convention on Human Rights.